

SAN LEANDRO CJIS SECURITY VENDOR ACCESS FORM

Vendor Access to Police Department Facilities, Systems, or Criminal Justice Information

This CJIS Security Addendum (“Addendum”) is entered into by and between:

Agency: City of San Leandro Police Department

Address: _____
 (“Agency”)

and

Vendor/Contractor: _____

Address: _____
 (“Vendor”)

Effective Date: _____

Underlying Agreement/Contract No.: _____

Agency Contract Administrator: _____

Vendor Contract Representative: _____

This Addendum is incorporated into and made part of the agreement identified above. If there is a conflict between this Addendum and the underlying agreement, this Addendum controls with respect to the protection of Criminal Justice Information, security requirements, privacy, access to Agency facilities, and compliance with applicable CJIS requirements.

1. Purpose

The purpose of this Addendum is to establish the security, privacy, personnel, facility, technology, incident-response, and audit requirements applicable to Vendor personnel who:

1. Enter or work within Police Department facilities;
2. Access Agency systems, networks, applications, devices, or information;
3. Access, receive, transmit, store, process, view, or otherwise handle Criminal Justice Information (“CJI”);
4. Provide services that support systems or infrastructure used to process or protect CJI; or
5. Have unescorted physical or logical access to areas, equipment, media, or systems containing or capable of accessing CJI.

This Addendum is intended to supplement, and not replace, the applicable FBI CJIS Security Policy, California CJIS requirements, applicable state and federal law, Agency policies, and written instructions issued by the Agency's CJIS Information Security Officer ("CJIS ISO").

2. Definitions

2.1 Criminal Justice Information

"Criminal Justice Information" or "CJI" means information necessary for law enforcement and civil agencies to perform their missions, including information obtained through or derived from FBI CJIS systems, state criminal justice systems, criminal history record information, personally identifiable information, and associated data that requires protection under applicable CJIS requirements.

2.2 Authorized Personnel

"Authorized Personnel" means Vendor employees, officers, agents, subcontractors, or representatives who have been approved in writing by the Agency and who satisfy all applicable access, training, background-screening, confidentiality, and security requirements.

2.3 Security Incident

"Security Incident" means any actual, suspected, or attempted event that may compromise the confidentiality, integrity, availability, or lawful use of CJI, Agency systems, facilities, credentials, equipment, or information. This includes unauthorized access, disclosure, use, copying, alteration, loss, theft, destruction, malware, phishing, credential compromise, or policy violation.

3. Authorized Use and Purpose Limitation

Vendor shall:

1. Access Agency facilities, systems, and information only after receiving written authorization from the Agency;
2. Use CJI and Agency systems solely to perform the services described in the underlying agreement;
3. Access only the minimum information, systems, facilities, and functions necessary to perform authorized duties;
4. Not use CJI for personal, commercial, marketing, employment, research, profiling, or any other unauthorized purpose;

5. Not sell, disclose, publish, distribute, reproduce, mine, aggregate, or provide CJI to any person or entity unless expressly authorized in writing by the Agency and permitted by law;
6. Not use CJI to determine eligibility for employment, credit, insurance, housing, licensing, or any other non-authorized purpose;
7. Not access records merely because access is technically possible;
8. Not attempt to bypass, disable, defeat, or circumvent Agency security controls; and
9. Immediately report any access that was accidental, unnecessary, excessive, or inconsistent with the authorized purpose.

Access to CJI is a revocable privilege and is not a right of the Vendor or any Vendor personnel.

4. Facility Access and Physical Security

Vendor shall comply with all Agency physical-security requirements, including:

1. Wearing a visible Agency-issued or Vendor identification badge while on Agency premises;
2. Displaying identification upon request;
3. Entering only areas specifically authorized by the Agency;
4. Remaining escorted in restricted areas unless the individual has been approved for unescorted access;
5. Not permitting tailgating, piggybacking, or unauthorized entry;
6. Protecting keys, access cards, badges, tokens, and other credentials;
7. Immediately reporting lost, stolen, damaged, or misused access devices;
8. Not photographing, recording, copying, or removing documents, screens, equipment, or media without authorization;
9. Securing workstations, equipment, documents, and media from unauthorized viewing or access; and
10. Following all visitor, escort, clean-desk, media-control, emergency, and facility-security procedures.

The Agency may deny or revoke facility access at any time.

5. Personnel Screening and Approval

Before any Vendor personnel receive access to Agency facilities, systems, or CJI, Vendor shall provide information reasonably requested by the Agency to support required screening and approval.

Vendor shall ensure that:

1. Only Agency-approved personnel receive access;
2. Personnel satisfy applicable fingerprint-based background-check and screening requirements before receiving access, when required;
3. Personnel are not assigned to CJIS-related duties if disqualified under applicable law, policy, or CJIS requirements;
4. Personnel are informed of their security and confidentiality obligations;
5. Personnel sign any required user agreements, confidentiality agreements, acknowledgments, or certifications;
6. Personnel receive required security-awareness and CJIS-related training before access and at required intervals thereafter;
7. Personnel receive additional training when their duties, systems, risks, or applicable requirements change; and
8. Vendor maintains documentation demonstrating completion of required screening, approvals, training, and acknowledgments.

Vendor shall notify the Agency promptly, and in no event later than **one business day**, when an individual's employment, assignment, authorization, or need for access ends or changes.

6. Confidentiality and Protection of CJI

Vendor shall maintain the confidentiality, integrity, and availability of CJI and shall protect it from unauthorized access, use, disclosure, alteration, loss, destruction, or compromise.

Vendor shall:

1. Treat CJI as confidential and law-enforcement-sensitive information;
2. Use reasonable and appropriate administrative, physical, and technical safeguards;
3. Follow the current CJIS Security Policy and all applicable Agency procedures;
4. Protect CJI throughout its lifecycle, including creation, access, use, transmission, storage, disclosure, retention, return, and destruction;
5. Prevent unauthorized personnel, subcontractors, visitors, and third parties from accessing CJI;
6. Not place CJI in email, cloud storage, collaboration tools, removable media, artificial-intelligence tools, or other services unless expressly approved in writing by the Agency;
7. Not transfer CJI outside the United States or permit access from outside the United States without prior written Agency approval and any required regulatory approval;
8. Not disclose CJI in response to a subpoena, public-records request, legal demand, or other third-party request without promptly notifying the Agency, unless legally prohibited; and
9. Cooperate with the Agency in responding to requests, investigations, audits, complaints, and corrective actions.

These obligations survive expiration or termination of the underlying agreement.

7. Information-System Security

Vendor shall maintain security controls appropriate to the services and consistent with applicable CJIS requirements. At a minimum, Vendor shall:

1. Apply least-privilege and need-to-know access;
2. Use unique user IDs and prohibit shared accounts unless expressly approved;
3. Protect passwords, authentication factors, tokens, keys, certificates, and other credentials;
4. Use multi-factor or advanced authentication where required;
5. Lock or secure unattended workstations and devices;
6. Maintain supported operating systems, applications, and security software;
7. Apply security patches and updates within timeframes approved by the Agency;
8. Use anti-malware, endpoint-protection, firewall, logging, monitoring, and vulnerability-management controls appropriate to the environment;
9. Encrypt CJI when required by the CJIS Security Policy or the Agency;
10. Protect encryption keys from unauthorized access;
11. Restrict and monitor administrative privileges;
12. Maintain secure configurations and change-control procedures;
13. Maintain audit logs sufficient to support security monitoring, investigations, and compliance reviews;
14. Preserve logs and evidence related to a Security Incident;
15. Prohibit unauthorized copying, downloading, printing, photographing, or recording of CJI; and
16. Not connect unauthorized devices, systems, software, wireless access points, or storage media to Agency systems or networks.

The Agency may impose additional technical requirements based on the Vendor's role, system architecture, access method, or risk assessment.

8. Remote Access

Remote access to Agency systems or CJI is prohibited unless expressly authorized in writing.

If remote access is authorized, Vendor shall:

1. Use only Agency-approved devices, connections, applications, and authentication methods;
2. Use secure, encrypted connections;
3. Prevent access by family members, guests, unauthorized personnel, or other third parties;
4. Not use public or unsecured computers to access CJI;
5. Not download or locally store CJI unless specifically authorized;

6. Maintain appropriate physical privacy and prevent unauthorized viewing;
 7. Comply with Agency monitoring, logging, device-management, and session-control requirements; and
 8. Immediately terminate remote sessions when work is complete or access is no longer needed.
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9. Subcontractors and Third Parties

Vendor shall not permit any subcontractor, affiliate, consultant, cloud provider, hosting provider, or other third party to access Agency facilities, systems, or CJI without the Agency's prior written approval.

Before access is granted, Vendor shall ensure that each approved third party:

1. Is subject to written obligations at least as protective as this Addendum;
2. Satisfies all applicable screening, training, confidentiality, and security requirements;
3. Uses only approved personnel and access methods;
4. Cooperates with Agency and CJIS audits and investigations; and
5. Is not located or operating outside an approved jurisdiction.

Vendor remains fully responsible for all acts and omissions of its subcontractors and third parties.

10. Security Incident Notification and Response

Vendor shall maintain a written incident-response capability appropriate to its services and shall cooperate with the Agency's incident-response procedures.

Vendor shall notify the Agency's designated contact **immediately, and no later than one hour after discovery**, of any actual or suspected Security Incident involving Agency facilities, systems, credentials, equipment, or CJI.

Notice shall be made by telephone and followed by written confirmation. Initial notice shall include, to the extent known:

- Date and time discovered;
- Date and time the incident began, if known;
- Systems, facilities, accounts, devices, or information affected;
- Nature and scope of the incident;
- Whether CJI may have been accessed, acquired, altered, disclosed, lost, or destroyed;
- Actions taken to contain and remediate the incident; and

- Contact information for the Vendor's incident-response representative.

Vendor shall:

1. Immediately take reasonable steps to contain and mitigate the incident;
2. Preserve relevant logs, records, devices, media, and evidence;
3. Not destroy, alter, or overwrite potentially relevant evidence;
4. Cooperate with Agency, law-enforcement, regulatory, forensic, and audit activities;
5. Not notify affected individuals, media, regulators, or other third parties regarding an incident involving Agency information without the Agency's prior written approval, unless legally required;
6. Provide periodic status updates; and
7. Prepare a written incident report and corrective-action plan upon request.

Vendor shall bear responsibility for costs and remediation to the extent caused by Vendor's breach, negligence, willful misconduct, or failure to comply with this Addendum, subject to the underlying agreement and applicable law.

11. Audit, Inspection, and Compliance Verification

The Agency, the California CJIS Systems Agency, the FBI CJIS Division, and their authorized representatives may verify Vendor's compliance with this Addendum and applicable CJIS requirements.

Vendor shall:

1. Permit reasonable audits, assessments, inspections, interviews, and testing;
2. Provide requested policies, procedures, training records, access lists, screening records, audit logs, incident records, system documentation, and evidence of controls;
3. Provide reasonable access to applicable facilities, systems, personnel, and service providers;
4. Cooperate with CJIS compliance reviews and corrective-action requests;
5. Correct deficiencies within the time period specified by the Agency; and
6. Not obstruct or unreasonably delay an authorized audit or investigation.

Audit reports, security documentation, and information exchanged under this section shall be handled as confidential and law-enforcement-sensitive information.

12. Records, Logging, and Cooperation

Vendor shall maintain records necessary to demonstrate compliance with this Addendum, including:

- Authorized-user lists;
- Access approvals and revocations;
- Background-screening documentation;
- Training and acknowledgment records;
- System and security documentation;
- Access and audit logs;
- Security incidents and corrective actions;
- Media and equipment disposition records; and
- Subcontractor compliance records.

Unless a longer period is required by law, the underlying agreement, or Agency policy, Vendor shall retain such records for the term of the agreement and for at least **three years after termination**.

13. Data Retention, Return, and Destruction

Upon the Agency's request, expiration, or termination of the underlying agreement, Vendor shall immediately cease using and accessing CJI and Agency information, except as necessary to complete an Agency-approved transition or preserve evidence.

Vendor shall, as directed by the Agency:

1. Return all CJI and Agency information;
2. Securely delete or destroy all copies;
3. Remove CJI from systems, devices, backups, cloud environments, temporary storage, and removable media;
4. Sanitize or destroy media in accordance with applicable CJIS and Agency requirements;
5. Provide a written certificate of return, deletion, destruction, or media sanitization; and
6. Preserve information only when legally required, securely segregate it, and continue protecting it under this Addendum.

Vendor shall not retain CJI for convenience, archival purposes, analytics, product development, machine learning, or any other purpose without express written Agency authorization.

14. Prohibited Activities

Vendor and Vendor personnel shall not:

1. Share credentials or use another person's credentials;
2. Access records without a business need and authorization;
3. Browse, search, or query CJI out of curiosity;
4. Use CJI for personal benefit or to assist another person;
5. Copy, photograph, screenshot, record, print, or remove CJI without authorization;
6. Connect unauthorized devices or media to Agency systems;
7. Install unauthorized software or modify Agency systems;
8. Disable security controls or monitoring;
9. Permit unauthorized persons to observe, access, or use Agency systems;
10. Upload CJI to unapproved websites, applications, platforms, or AI services;
11. Discuss CJI in public or unsecured locations; or
12. Make statements to the media or public concerning CJI or an Agency Security Incident without Agency authorization.

15. Enforcement and Remedies

The Agency may immediately suspend or revoke any individual's facility, system, network, application, or CJI access when the Agency reasonably believes that continued access presents a security, privacy, operational, legal, or compliance risk.

Failure to comply with this Addendum may result in:

- Immediate removal from Agency facilities;
- Suspension or termination of access;
- Corrective-action requirements;
- Contract remedies;
- Termination of the underlying agreement;
- Liability for damages or costs;
- Referral to law enforcement or regulatory authorities; and
- Any other remedy available under the agreement or applicable law.

16. No Waiver of Legal Requirements

Nothing in this Addendum authorizes Vendor to violate federal, state, or local law, the FBI CJIS Security Policy, California CJIS requirements, criminal-history-record restrictions, public-records laws, privacy laws, or Agency policy.

If a provision of this Addendum is determined to be unenforceable, the remaining provisions shall remain effective. Any required waiver must be in writing and signed by an authorized Agency representative. Failure to enforce a provision does not constitute a continuing waiver.

17. Order of Precedence

In the event of a conflict, the following order of precedence applies:

1. Applicable federal or state law;
2. Applicable FBI CJIS requirements;
3. Written requirements of the California CJIS Systems Agency;
4. This Addendum;
5. The underlying agreement; and
6. Vendor policies or procedures.

Vendor shall comply with the more protective requirement when legally permissible.

18. Vendor Certification

By signing below, Vendor certifies that:

1. It has reviewed and understands this Addendum;
 2. It will comply with this Addendum and applicable CJIS requirements;
 3. It will provide access only to approved and authorized personnel;
 4. It will ensure that its personnel and approved subcontractors comply with these obligations;
 5. It will promptly report suspected violations and Security Incidents;
 6. It will cooperate with Agency, CJIS, audit, and investigative requirements; and
 7. It will not represent that it is “CJIS certified” unless that representation has been expressly approved in writing by the Agency and is accurate under applicable requirements.
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SIGNATURES

CITY OF SAN LEANDRO POLICE DEPARTMENT

By: _____
Name: _____
Title: _____
Date: _____

CJIS Information Security Officer:

By: _____
Name: _____
Title: _____
Date: _____

VENDOR

Legal Name: _____

By: _____
Name: _____
Title: _____